

Accordingly creditors have succeeded in their suit after a *laches* of twelve years (*k*); but even creditors will be barred of their remedy if they be chargeable with very gross *laches*, as with acquiescence in the sale for a period of thirty-three years (*l*).

5. **Time no bar where circumstances not known.**—For *laches* to operate as a bar, it must be shown that the *cestui que trust* knew the trustee was the purchaser; for while the *cestui que trust* continues ignorant of that fact, he cannot be blamed for not having quarrelled with the sale (*m*).

6. **Distress of cestui que trust.**—The effect of the length of time may also be materially influenced by the continued *distress* of the *cestui que trust* (*n*), but *poverty is merely an ingredient in the case, and will not alone displace the bar (*a*).

7. **Confirmation of the sale.**—Of course the *cestui que trust* may ratify the sale to the trustee by an express and actual confirmation (*b*); and if the *cestui que trust* choose to confirm it, he cannot afterwards annul his own act on the ground of no adequate consideration (*c*). But—

a. Requisites of good confirmation.—The confirming party must be *sui juris*—not labouring under any disability, as infancy or coverture (*d*). But, in the case of real estate a *feme covert* can, if it be not settled to her separate use without anticipation, confirm the purchase under the operation of the Fines and Recoveries Act (*e*). And in confirmation, as in acquiescence, a *feme covert* who has property, whether real or personal, settled to her separate use, [or belonging to her as her separate property under the recent Act (*f*),]

(*k*) Anon. case in the Exchequer, cited *Lister v. Lister*, 6 Ves. 632.

(*l*) See *Hercy v. Dinwoody*, 2 Ves. jun. 87; *Scott v. Nesbitt*, 14 Ves. 446.

(*m*) *Randall v. Errington*, 10 Ves. 423, see 427; *Chalmer v. Bradley*, 1 J. & W. 51.

(*n*) *Oliver v. Court*, 8 Price, 127; see 167, 168; and see *Gregory v. Gregory*, G. Coop. 201; *Roche v. O'Brien*, 1 B. & B. 342.

(*a*) *Roberts v. Tunstall*, 4 Hare, 257; see p. 267.

(*b*) *Morse v. Royal*, 12 Ves. 355; *Clarke v. Swaile*, 2 Eden, 134; and see *Chesterfield v. Janssen*, 2 Ves. 125; S. C. 1 Atk. 301.

(*c*) *Roche v. O'Brien*, 1 B. & B. 353, per Lord Manners.

(*d*) *Campbell v. Walker*, 5 Ves. 678; S. C. 13 Ves. 601; *Roche v. O'Brien*, 1 B. & B. 330, see 339; and see *Scott v. Davis*, 4 M. & Cr. 92.

(*e*) 3 & 4 W. 4, c. 74; and see 8 & 9 Vict. c. 106.

[(*f*) 45 & 46 Vict. c. 75.]